

Court No. - 21

Case :- WRIT - C No. - 7501 of 2023

Petitioner :- Vikas Pratap Singh

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Chandra Kant, Santosh Kumar Tiwari

Counsel for Respondent :- C.S.C, Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

Learned counsel for the respondent-Electricity Department prays for and is granted one week's time to obtain instructions.

List on 15th March, 2023 as fresh.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 3.3.2023

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Court No. - 21

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Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Chandra Kant,Santosh Kumar Tiwari

Counsel for Respondent :- C.S.C,Udit Chandra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Learned counsel for the respondent prays for a week's further time to obtain instructions.

List as fresh on 22.03.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 15.3.2023

Shivangi

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Counsel for Petitioner :- Chandra Kant, Santosh Kumar Tiwari

Counsel for Respondent :- C.S.C, Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

As prayed by brief holder of learned counsel for the petitioner,
adjourned to 3.4.2023 as a fresh case.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 22.3.2023

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Counsel for Respondent :- C.S.C, Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

Matter taken up in revised call. Counsel for the respondents is not present.

List as fresh on 11.04.2023.

In the meantime, recovery in pursuance of the impugned demand notice shall remain stayed.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 3.4.2023

SL

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Counsel for Petitioner :- Chandra Kant,Santosh Kumar Tiwari

Counsel for Respondent :- C.S.C,Udit Chandra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

The petitioner has filed the instant petition praying for quashing of the demand notice dated 1.09.2022 issued by respondent no.3 for realisation of compounding fee from the petitioner in a case of theft of electricity.

Sri Udit Chandra, learned counsel for respondent Electricity Department states that the impugned demand notice has been withdrawn and that the respondent will pass fresh order after following the procedure prescribed.

Accordingly, the petition is disposed of with liberty to the respondent Electricity Department to pass fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 11.4.2023

SL